IN THE SUPREME COURT OF THE STATE OF WASHINGTON

GREGORY M. and R. SUE TADYCH, a married couple,
Petitioners,

vs.

NOBLE RIDGE CONSTRUCTION, INC., a Washington corporation; and WESCO INSURANCE COMPANY, a foreign surety,
Respondents.

No. 100049-9

OBJECTION TO ASSIGNMENT JUSTICE'S RULING

Court of Appeals No. 81948-8-I

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A. Identity of objecting party & relief requested.

Respondent Noble Ridge asks this Court to reconsider its ruling giving Petitioners Tadych (a) more time to file their Supplemental Brief, and (b) a chance to *reply* to Noble Ridge's Supplemental Brief. This ruling both prejudices Noble Ridge and advantages the Tadyches.

B. Facts relevant to objection.

This Court granted review on November 3, making the Supplemental Briefs due December 3. RAP 13.4(d). The Tadyches asked for more time to file their Supplemental Brief, until December 27. This Court granted both parties until December 17 to simultaneously file their Supplemental Briefs. Noble Ridge complied.

The Tadyches violated this Court's rules by filing an overlength supplemental brief the day it was due. This Court rewarded their violation with more time to make their brief

stronger, also effectively granting them a *reply* to Noble Ridge's already filed Supplemental Brief.

C. Argument.

This ruling rewards Tadyches for their noncompliance with this Court rules by giving them more time to improve their brief that was not given to Noble Ridge. It also prejudices Noble Ridge for complying with the RAPs, giving the Tadyches a reply to its Supplemental Brief. Replies to supplemental briefs are not permitted.

This Court should reconsider and either: (a) accept the overlength supplemental brief; or (b) grant Nobel Ridge a reply to be filed within 10 days after the Tadyches file their Amended Supplemental Brief. The latter ruling punishes Noble Ridge's counsel, who is on vacation, but he will get it done.

D. Conclusion.

This Court should reconsider and either: (a) accept the overlength supplemental brief; or (b) grant Nobel Ridge a reply to be filed within 10 days after the Tadyches file their Amended Supplemental Brief.

This document contains 289 words, excluding the parts of the document exempted from the word count by RAP 18.17(b).

RESPECTFULLY SUBMITTED this 21st day of December, 2021.

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CERTIFICATE OF SERVICE

I certify that I caused to be filed and served a copy of the foregoing OBJECTION TO ASSIGNMENT JUSTICE'S RULING on the 21st day of December, 2021, as follows:

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